

“有策略地使用证据法”Strategic Use of Evidence (SUE)是一个能帮助审讯者更好区分受审者是否在说谎的审讯技巧。SUE技巧通过诱发受审者**陈述之间的不一致**（即受审者后续陈述与前期陈述不一致）以及**陈述与证据之间的不一致**（即受审者的陈述与已有证据不一致)来达成上述目标。以上两种不一致均经研究证实为说谎的可靠标志。审讯者需在审讯中尽可能隐瞒已有证据，并使用漏斗型提问框架来诱发上述两种不一致。

尽管在审讯中说谎者和诚实者都试图说服审讯者他们是清白的，SUE技巧的一个基本前提是两者会使用不同策略来达成以上目的。研究表明，说谎者如有机会，会回避重要信息，而诚实者在审讯中会乐于提供信息且实话实说。例如，在回答一个开放性问题（“你上周四做了什么？”）的时候，说谎者会避免说出他曾经接近过犯罪现场（定罪细节），而一个诚实者不会回避说出他在犯罪现场（是定罪细节，但不会定罪于无辜者，所以他们没有理由避免揭露这个信息）。这意味着说谎者与诚实者之间的区别在于说谎者会有所**回避**。

如果说谎者无法回避定罪信息，他们则会**否认**它。例如，在回答一个具体问题“你当时是否去过Johnson的家里（犯罪现场）？”时，说谎者会否认他去过那里，而诚实者不会否认。这类问题会使说谎者否认事实，而这清晰地体现了**陈述与证据之间的不一致**（即审讯者有证据证明说谎者的陈述是错误的），从而可以判断受审者在说谎。具体问题也可以用来尽可能多地获得对证据的其他解释（包括可以使受审者排除嫌疑的解释）。

综上所述，说谎者在审讯中会有所**回避及否认**，而诚实者会乐于提供信息并实话实说。使用开放性问题可以反映出两者回答中省略的不同，而使用具体问题可以使说谎者否认事实或改变原来的口供。

提问策略：

为了突出说谎者和诚实者的回答策略的不同，SUE技巧主要有以下原则：

- 1) 审讯者必须隐瞒已掌握的相关信息（证据）。

当说谎者不清楚审讯者知道多少信息时，如果他们的陈述与已掌握的证据不一致，他们的回避和否认将会非常明显。例如，如果审讯者已经掌握了嫌疑人曾出现在犯罪现场附近的证据，审讯者不应透露这个信息。如果嫌疑人在回答一个问题时否认曾出

现在犯罪现场附近，那么嫌疑人的陈述与证据之间已经产生了一致。诚实者则不会省略他们曾出现在犯罪现场附近的信息，因为他们认为这个信息不会使他们负罪。

2) 使用漏斗型的提问结构。

使用漏斗型的提问结构可以有效使**陈述与证据之间的一致及陈述之间的一致**的次数最大化。这意味着审讯者在开始时应让嫌疑人自由陈述他的活动，然后逐渐提出更加具体的与证据相关的问题。这样的提问结构使嫌疑人有机会与证据相矛盾，且更为重要的是，这为无辜者提供了一个解释证据的机会。当越来越多的证据被审讯者揭露（“我们知道你曾在某地”），说谎者将要么否认这个信息，要么改变口供。诚实者则由始至终乐于提供信息并实话实说，且不会改变口供，也不会作出与证据不一致的陈述。

反之，如果审讯者在审讯开始时便出示证据，说谎者则有机会将证据包含在他们的口供中。因而，使用漏斗型的提问结构可以最大化说谎者需要改变口供或否认证据的次数。

在构建审讯时，使用“证据框架矩阵”Evidence Framing Matrix (EFM)可以帮助将漏斗型提问结构实际应用于审讯过程中。

“证据框架矩阵”Evidence Framing Matrix (EFM)：

任何一种证据都能以不同形式被出示。例如，证明嫌疑人在现场的DNA证据可以直接被出示（“我们有DNA证据表明你曾在Turku的中央图书馆”）或以一种更笼统的方式被出示（“我们有信息表明你曾在Turku”）。证据框架矩阵阐释了可能的出示证据的方法。这个矩阵有2个维度：证据来源的强度（由弱至强）以及证据的具体程度（由低至高）。

	低具体程度	高具体程度
强来源	我们有DNA证据表明你曾在Turku	我们有DNA证据表明你曾在Turku的中央图书馆
弱来源	我们有信息表明你曾在Turku	我们有信息表明你曾在Turku的中央图书馆

使用EFM矩阵及SUE审讯技巧的典型审讯结构是：由宽泛笼统的问题开始（例如，你上周五[案发日]曾去过哪里、做了什么？），然后顺着矩阵的方向由“弱来源、低

具体程度”至“强来源、低具体程度”，最终至“强来源、高具体程度”的方式出示证据。使用逐步揭露证据的技巧的目的是诱使有罪的嫌疑人面对出示的证据改变口供，从而使嫌疑人的陈述之间产生不一致。

例如，如果审讯者已经掌握了一个毛发样本，它可以证明嫌疑人曾到过Mary Dover谋杀案案发的同一房间，审讯者可以使用EFM来构建审讯如下：

审讯开始时，审讯者应宽泛地询问嫌疑人在案发日的活动。如果嫌疑人开始告诉审讯者他一整天都在他姐妹的房子里，一个陈述与证据之间的不一致已经产生了。如果嫌疑人有对证据的解释能够排除其嫌疑的，此时解释应该已经出现了。

接着，审讯者应表示他有信息（弱来源）表明嫌疑人当时在案发的相同地区（低具体程度）。在第一个问题中说谎的嫌疑人要么会否认这个信息，要么会改变口供来匹配这个新出现的证据，而这对于无辜者来说是另一个回忆当日活动的机会。

下一步，审讯者应以强来源、低具体程度的方式出示证据。审讯者可告诉嫌疑人他已经在那个区域获得了与嫌疑人匹配的毛发样本。如果嫌疑人否认了上一个问题中的证据，他的陈述则再次与证据不一致。此时，他可能会承认曾去过那个区域，并作出一些其他的解释。而这种情况下，嫌疑人陈述之间的不一致也产生了。

将矩阵应用于本案例的最后一步是以强来源、高具体程度的方式出示证据。审讯者可告诉嫌疑人：“我们在Mary的房间里发现了你的毛发样本。”一个说谎的嫌疑人会再次改变口供来匹配这个证据，而诚实者的陈述则全程保持一致。

测试问题：

请选择您认为正确的选项来回答下列问题：

您应该尽早在审讯中出示您已掌握的证据来给潜在的无辜者一个为自己辩解的机会。

- a) 是
- b) 否

下列哪项是推荐的审讯结构？

- a) 直接提问定罪相关的信息来最大化用在询问案件最相关的内容的时间
- b) 由笼统的问题开始，后续逐渐提出更加具体的问题
- c) 让嫌疑人联系证据为自己辩解，然后对口供提出具体的问题来戳穿其中的漏洞

样本案例：

您已经在一家中午被抢劫的商铺的柜台上获取了指纹。这个证据表明您将要审讯的嫌疑人当日某时曾去过犯罪现场。您将如何应用EFM、在审讯中使用这则证据以最大化嫌疑人陈述之间的不一致及陈述与证据之间的不一致？

	低具体程度	高具体程度
强来源		
弱来源		

Strategic Use of Evidence (SUE) is an interview technique that aims to better differentiate between liars and truth-tellers. The SUE technique does this by eliciting **within-statement inconsistencies**, and **evidence-statement inconsistencies** (i.e., statements that are inconsistent with earlier statements, and statements that are inconsistent with the evidence). These are both empirically proven reliable markers of deception. This is achieved by **withholding evidence** and using a funnel-like structure of questioning.

While liars and truth-tellers in an interview setting share a goal of trying to convince the interviewer of their innocence, a basic premise of SUE is that liars and truth tellers employ different strategies to convince the interviewer. According to research, liars will avoid disclosing critical information, if given the opportunity. Truth-tellers in contrast will be forthcoming and honest. For example, as a response to an open-ended question (What did you do last Thursday?) a liar would avoid revealing that he was even close to the crime-scene (incriminating detail), while a truth-teller would not avoid disclosing that he was at the scene of the crime (incriminating detail, but it is not incriminating to them so they have no reason to avoid disclosing this information). This means that one difference in strategies between liars and truth-tellers is that liars will use **avoidance**.

If liars are unable to avoid the incriminating information, they will **deny** it. For example, in response to the specific question “were you at Johnsons’ house?” (the scene of the crime) a liar would deny being there, while a truth-teller would not. These kinds of questions will make liars deny facts, which will lead to clear signs of deception in the form of statement-evidence inconsistencies (i.e., statements the interviewer knows are not true since they have evidence proving something else.) Specific questions also serve to exhaust all other (innocent) explanations for the evidence.

In summary, liars will use **avoidance** and **denial**, while truth-tellers will be truthful and forthcoming. Open-ended questions will produce differences in omissions, while specific questions will lead to denial of facts or changes to the initial story.

Questioning tactics:

To highlight the differences between strategies employed by truth-tellers and liars, the SUE technique includes the following principles:

- 1) The relevant information (evidence) held by the interviewer must be withheld.

When liars are unaware of how much the interviewer knows, their avoidance and denial become apparent if they produce statements that are inconsistent with evidence held by the interviewer. For example, if the interviewer has evidence that the suspect has been near the crime scene, he should not disclose this information. If the suspect then denies being near the crime scene in response to a question, he has produced a statement-evidence inconsistency. A truth-teller would not omit being near the crime scene, since this information is not incriminating to them.

- 2) Use of a funnel-like structure.

To maximize the amount of statement-evidence inconsistencies and within-statement inconsistencies use of a funnel-like structure is effective. This means that the interviewer should begin by eliciting a free narrative of the suspect’s activities, followed by questions that grow increasingly specific in relation to the evidence. This provides an opportunity for guilty

suspects to contradict the evidence and, importantly, an opportunity for innocent suspects to explain the evidence. When more evidence is revealed (“We know you were at place X”), a liar will have to either deny the information or change their story. Truth-tellers will be forthcoming and honest from the start, and will therefore not have to change their story and will not say something that contradicts the evidence.

If the interviewer instead presents the evidence at the start of the interview, a liar has an opportunity to incorporate the evidence into their story. Using a funnel-like structure maximizes the times a liar has to change their story or deny the evidence.

One way to construct an interview in a funnel-like structure is use of the Evidence Framing Matrix (EFM).

Evidence Framing Matrix (EFM):

Any given type of evidence can be presented in many ways. For example, DNA-evidence placing a suspect at the scene of a crime can be presented just as is (“We have DNA-evidence placing you at the central library in Turku”) or in a more general way (“We have information placing you in Turku”). The Evidence Framing Matrix illuminates possible ways to present evidence. The matrix has two dimensions: the strength of the source (from weak to strong) and specificity of the evidence (from low specificity to high specificity).

	Low specificity	High specificity
Strong source	We have DNA-evidence that you were in Turku	We have DNA-evidence placing you at the central library in Turku
Weak source	We have information that you were in Turku	We have information that you were at the central library in Turku

A typical structure of an interview using SUE-technique with the EFM would be to start with broad general questions (for example, what did you do and where did you go on last friday [the day of the crime]) and then go along the matrix from weak source and low specificity, to strong source low specificity and then finally strong source and high specificity. The aim of this gradual disclosure technique is to induce a guilty suspect to change his or her statement in response to the evidence disclosure, thereby generating within-statement inconsistencies.

For example, if the interviewer has recovered a hair sample that places the suspect in the same room the murder of Mary Dover took place, the interviewer could use the EFM to structure their interview like this:

The interviewer would start by asking broadly about the suspects activities during the day the crime took place. If the suspect starts by telling the interviewer he was at his sisters house all day he has produced a evidence-statement inconsistency. If the suspect has an innocent explanation for the evidence this would probably come up at this point.

The interviewer would then say that he has information (weak source) that the suspect was in the same area (low specificity) where the murder took place. A suspect that lied in the first

question would then either have to deny the information or change their story to fit this new evidence. An innocent suspect would have another chance to remember their activities.

The next step would be to use a strong source and low specificity. Now the interviewer tells the suspect he has obtained a hair-sample matching the suspect in the area. If the suspect denied the evidence at the last question he has again been inconsistent with the evidence. At this point he might admit to being in the area and come up with another explanation. In this case he has produced a within-statement inconsistency.

The final step of the matrix (strong source and high specificity) in this case could be the interviewer presenting the evidence to the suspect. "We have found your hairs from Marys room". A lying suspect would again come up with yet another change to the story to fit with the evidence. Someone telling the truth would have been consistent in their story the whole time.

Training questions:

Answer these statements with the alternative you think is true:

The evidence you have should be presented early in the interview to give the potentially innocent suspect a chance to explain himself

- a) Yes
- b) No

Which of the following is a recommended structure for an interrogation?

- a) Going straight to the incriminating information to maximize time spent on the relevant part
- b) Starting with general questions and being more specific with later questions
- c) Asking the suspect to explain himself in relation to the evidence, and then ask specific questions about the story to poke holes in it

Example case:

You have obtained fingerprints off the counter of a shop that got robbed at noon. This places the suspect you are about to interview at the crime-scene at some point during the day. How would you use this evidence with the EFM to maximize within-statement inconsistencies and statement-evidence inconsistencies?

Low specificity

High specificity

Strong source

Weaksource
